FCC FAQ and Policies

What is the FCC?
The Federal Communications Commission is "an independent government agency that regulates... communications by radio and television" (dictionary.com). The FCC regulates, among other things, what may and may not be broadcast over radio and television.

Why do students have to listen to them? This is a college radio station!
WMUL-FM broadcasts over the public airwaves. It is licensed by the FCC to operate in the public's interest. The FCC sets rules that all broadcast stations have to obey. If WMUL-FM's staff or management disobey these rules, the FCC can issue fines or even revoke the station's license. WMUL-FM's management does not care what anyone's personal opinion is about these rules, one will obey them or one's employment will be terminated. If anyone does not like these rules, one is free to run for Congress and try to have them changed.

Does this mean I personally may be fined?
By accepting an on-air position at this station, you assume liability for all the content you place, or allow to go on the air. If you say something that is not permitted, or allow a guest to do so, or clear a song containing indecency, you will be held liable. The FCC's fines range from $3,000 to $10,000 in the general case but can go as high as $32,500 per incident depending on the FCC's and the general public's mood.

I'll be okay after I graduate, right?
No. The FCC may take some time to initially issue a fine. It may take years after that to fully litigate the action. The Janet Jackson "wardrobe malfunction" occured February 1, 2004, and the fine was initially issued September 22, 2004, but the case was not finally resolved until June 29, 2012.

The only statute of limitations occurs when the FCC rules on a station's license renewal. The FCC is only allowed to fine stations for actions that have taken place during the station's current license term. For WMUL-FM, the current license term runs from Midnight, October 1, 2011, until 11:59:59 P.M. September 30, 2019. When the FCC renewed WMUL-FM's license on May 07, 2012, the statute of limitations expired on anything that may have happened prior to October 1, 2011.

If the FCC has any question of wrong-doing, it may choose to hold the license renewal until it can make a determination of whether there was any wrong-doing and what action it chooses to take.

FCC Indecency Rules:

The FCC's indecency rules get the most media attention and are among its most controversial. Legal precedent has defined indecency as "material which depicts or describes, in a patently offensive manner, sexual or excretory organs or activity." In short: sex and the bathroom.

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I heard that the Supreme Court struck down these rules recently. Did they?
No! In November 2011 the Third Circuit Court of Appeals tossed out a $550,000 fine against CBS for the 2004 Super Bowl "wardrobe malfunction" on procedural grounds. The court said that, in issuing the fine, the FCC had changed its rules about live broadcasts. The FCC had previously given a pass to brief or "fleeting" instances of indecency, especially in live programming. The circuit court said that the FCC could not issue a fine based on a rule that did not exist at the time of the broadcast. The Supreme Court declined to reveiw this case.
That means that while the fine is invalid, the new rules remain.

In July 2010 the Second Circuit Court of Appeals ruled in *Fox Television vs. FCC* that the FCC's indecency rules were "unconstitutionally vague" and tossed them entirely. The Supreme Court ruled on this case in June 2012. SCOTUS dodged the First Amendment issue altogether and tossed only the fine using the same reasoning as the Super Bowl case above.

I was listening to {show on satellite / Internet/ cable} and _they_ said {word}, why can I not say it?
The FCC's indecency rules only apply to over-the-air radio and television broadcasting. Satellite, Internet and cable are all restriction-free. A cable, satellite or Internet station or channel can say or show whatever it wants and the FCC can not do anything about it. (For now)

I was listening to {other radio station}, and they said {word}!
Just because someone else says it, doesn't make it legal. The station may or may not be fined. Not everyone who commits a crime gets punished. The other station may have made a mistake. The person who said it may have been fired before the day was over. Even if it were intentional, commercial stations can usually afford to take more risks than noncommercial, educational radio stations can.

So, what words cannot be said?
Indecency is more than just a list of words. A broadcast could avoid all the following words and still be indecent. However, the following words are ones to absolutely avoid, because they are indecent and are not protected speech.

- fuck
- shit
- goddamn
- tits
- cunt
- pussy
- cock
- dick
- asshole
- piss (in an excretory sense)*
- and any variations upon these words.

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What words can I say?

- ass (just not asshole or "up the ass" or any phrase that implies penetration)
- damn (but not goddamn)
- hell
- bastard
- bitch

What about the word "piss"?

You can use the word as a synonym for "mad", but not for "urine" or "to urinate". You can say "I got drunk and pissed off the neighbors." You can NOT say "I got drunk and pissed off the roof."

What about {word}?

If you don't know, ask a veteran member of either the music staff or the WMUL-FM board of directors. If you cannot find someone, it is better not to say it than to risk a fine.

What about Safe Harbor?

Safe Harbor is an FCC rule that waives the indecency rules between 10 P.M. and 6 A.M., when children are less likely to be in the audience.

WMUL-FM does not utilize Safe Harbor. The same rules apply throughout the day. At this radio station, if it can't be said at 3 P.M., it can't be said at 3 A.M.

Commercial Announcements, Calls to Action, Payola, Plugola:

WMUL-FM is a noncommercial, educational station. That means its staff members cannot promote any for-profit business or individual. Non-profit organizations, such as the Red Cross, are okay.

There is a band going to play in town, and I want to promote its concert on the air. May I?

Yes and no. Over the air, you can promote the concert, but not the venue. Over the phone or on our website, you can say or write anything. You may say "Single-Celled Paramecium is going to be in town March 12th. For more information, give me a call at 304-696-6651 or visit our website marshall-dot-e-d-u –slash-w-m-u-l." You CANNOT say "Single-Celled Paramecium is going to be at The Maverick Meerkat on March 12th." If WMUL-FM starts promoting one venue, it would have to promote them all. A commercial venue being promoted blurs the line between an announcement and an advertisement.

May I tell people to go to the concert? May I tell people that they will get a free T-Shirt if they go?

No! Telling people to go, or providing any encouragment to go (I.E. a free T-Shirt), is considered a "Call to Action." This type of statement violates station policy and FCC regulations. You may only state that the event is happening, you may not tell or encourage people to attend.

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May I tell people that the concert is only $1?
No! Any mention of price is a commercial announcement and is illegal. "Free" or "free to students" are also considered prices.

What about a calendar or on-air bulletin board?
A regularly scheduled calendar or bulletin board that simply lists the events happening around Huntington is fine so long as all venues are represented fairly.

I just got a CD and I think it is awesome. I want everyone to hear it and then go buy it!
Unfortunately, you cannot tell everyone to "go out and buy it." You may say you own it, that you think it is super-duper-awesome, that you think the audience would like it; however, if you command or tell members of your audience to do anything, that is a call to action and violates station policy and FCC regulations.

My band just put out a CD and I want to play it on the air.
I'm going to be DJing / bartending / performing at {location} and I want to tell my listeners to go there.
You cannot. To do so would be plugola and it is a CRIMINAL offense. Plugola is when the station or station personnel promote a service or commodity when the station or station personnel have a financial interest in the thing being promoted. Examples include, but are not limited to: playing music or promoting a band when the announcer is a member of the band or has an interest in the band's financial success; or promoting any club or concert in which the announcer has a financial interest, including employment at such a club or concert.

This band offered me $10 if I play their CD on air.
You cannot. To do so would be payola and it is also a CRIMINAL offense. Payola is the practice of accepting undisclosed consideration to influence program content. Examples include, but are not limited to: accepting drinks from a bar owner for saying nice things about the bar on air; or giving preferential treatment over the air to clubs, record store owners, or concert promoters in return for undisclosed payment, products or services.

Violation of payola and plugola laws can result in fines and up to one year in jail.

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On-Air Studio Policies for All Board Operators

1. All board operators should arrive at least ten (10) minutes before the operator's shift begins. Arriving early provides the operator ample time to get settled into the studio and make music selections for the airshift.

2. All board operators are resposible for what transpires during their airshift, whether they are present or absent.

    a. All board operators are in charge of the control room while they are on the air. They have the right to ask casual visitors or others in the control room to leave, including other staff members who are not engaged in the business of the radio station.

    b. All board operators are responsible for the actions of anyone they bring into the radio station. No more than one visitor at a time is allowed to accompany an announcer. The announcer must obtain permission from the Student Manager, at least 24 hours in advance, before bringing visitors to the station.

    c. Non-station personnel are not allowed to visit the station after 9:00 P.M. Visitors are not allowed on weekends unless permission is granted in advance by the Student Manager. Violations of this rule will result in dismissal because the Public Safety Office needs to be notified of any visitors.

    d. Non-station personnel are prohibited from operating or using any of the equipment or materials at WMUL-FM.

    e. Any announcer who cannot make an airshift must find a replacement, preferably someone who works in the same format. Failure to find a replacement will jeopardize the announcer's future opportunities at WMUL-FM.

3. Board operators are responsible for all studio equipment, including albums and compact discs, during their airshift. If albums or compact discs are missing, leave a note for the Music Director or Student Manager listing the artist(s) and album title(s).

4. Board operators are responsible for keeping accurate logs and following musical formats as designed or approved by the Music Director or Student Manager.

5. Announcers must attend all staff meetings and training sessions. Unexcused absences count the same as shift absences.

6. Absolutely no food, drink, or tobacco in the studio complex is permitted.

7. Alcohol and illegal substances are not allowed in the radio station. This a strict regulation of the Federal Communications Commission. Failure to comply with the rules will result in immediate dismissal.

8. Board operators are not to air written or previously recorded material without the permission of the continuity, production, or music directors.

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WMUL-FM Social Media Policy

This policy covers volunteers' utilization of WMUL-FM's social media accounts including, but not limited to, Facebook, Twitter, YouTube, and Instagram. It does not restrict volunteers' use of their personal social media accounts.

The complete WMUL-FM Social Media Policy is located in Volume I of The WMUL-FM Operations Manual, Policies and Station Organization. Some highlights are below.

Identify yourself:

a. When writing a public post from an offical WMUL-FM account, volunteers are required to append a dash and the volunteer's initials to the post. Optionally, volunteers may use a dash and the volunteer's account name in place of initials. The account name must be an account on the same platform. (The volunteer's Facebook name when posting on Facebook, Twitter handle when posting to Twitter, etc.) If the volunteer does not have an account on that same platform, then the volunteer must use the volunteer's initials.

b. Write in first person.
For example: *Good morning! I'm taking requests for Blues songs now. Call me on the WMUL request line at 304-696-6651 –AMC*

c. Unless explicitly authorized by the Social Media Director, only WMUL-FM Board of Directors members may post from an official WMUL-FM account as WMUL-FM, without a signature.

Professionalism:

a. When posting from any WMUL-FM social media account, users are to adhere to FCC Regulations (explained earlier in this document) regarding profanity and commercial announcements.

b. Users should not post racist, discriminatory, threatening, rude, or otherwise offensive comments from any WMUL-FM social media account.

c. Users are encouraged to exercise common sense when posting from any WMUL-FM account. In egregious cases, users may be banned from future use of WMUL-FM social media accounts for jeopardizing the station's image or credibility.

What to say:

a. "Tagging" or "mentioning" other people, groups, bands, yourself etc. in tweets and statuses is allowed and encouraged.

b. Users are encouraged to tweet about WMUL-FM, Marshall sports, bands, and special events on Marshall's campus or in Huntington. Users may NOT post about regularly scheduled events (i.e. a club's weekly meeting) unless it is the first one of the semester.

c. Users are encouraged to reply to posts directed at them and to use WMUL-FM accounts to directly interact with followers.

d. Users may share links to online articles, online videos, artists' websites, and the WMUL-FM website. Linking to pages/videos with profanity is allowed, but a profanity warning must lead the post. As a general rule, if you would minimize it if someone walked behind you, you probably shouldn't post it.

e. When writing a post with information obtained from another source (i.e.: another social media user), give credit where due.

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What not to say:

a. Users may not "tag" or "mention" persons who are running for a political office, including Student Govenment, or use WMUL-FM social media accounts to advocate political agendas or candidates. The exception to this rule is for news and interview programs where the person or persons are being interviewed, in which case the person(s) and his/her/their organization may be tagged or mentioned in posts promoting the interview program.

   For example: *During tonight's "On The Table", we'll have an inteview with @GOP presidential candidate @MittRomney –AMC*

b. Users may not use WMUL-FM social media accounts to promote for-profit corporations.
c. Users may not use WMUL-FM social media accounts to promote products, services, or music venues.
d. Users may not post negative comments about WMUL-FM, its programming, or any director or volunteer.
e. Volunteers may not "Like" or "Follow" other pages or users without permission from the Social Media Coordinator or applicable administrator.

Sharing and Reposting

a. All content reposted, retweeted, or otherwise shared by all users from any WMUL-FM social media account must adhere to all of the above policies.

Access privileges

a. No person may post to, or administer, any WMUL-FM social media account until he/she has agreed to these policies, signed the signature page, and returned the signed signature page to the Student Manager.

Summary Thoughts on Social Media

DO

- Reply to comments directed at you
- Promote your DJ shift, other WMUL DJs and programming, and the station in general
- Promote artists whose music you play on-air
- Sign your name on all posts from a WMUL account

DON'T

- Spam
- Promote politicians, political agendas, for-profit corporations, or products.
- Delete posts
- Damage the station's image, credibility or reputation

No Content On This Page

Station and FCC Policy Form

Page 9 / 9 - Signature

This page must be signed and returned to management before beginning your first on-air shift.

The WHITE and YELLOW copies are to be submitted to the station.

The PINK copy is for your records.

You must KEEP the rest of this form for your future reference.

_____ (Initial) I have read, understand, and agree to the station and FCC content rules and regulations as presented in the section "FCC FAQ and Policies" on Pages 1-4 of this document. I understand that violation of these rules can result in suspension or dismissal from WMUL-FM. I understand that I am liable if the FCC choses to fine the station for infractions I have committed.

_____ (Initial) I have read, understand, and agree to the station policies in the section "On-Air Studio Policies for All Board Operators" on Page 5 of this document. I understand that violation of these rules can result in suspension or dismissal from WMUL-FM.

_____ (Initial) I have read, understand, and agree to the station policies in the section "WMUL-FM Social Media Policies" on Pages 6-7 of this document. I understand that violation of these rules can result in suspension or cancellation of my access to WMUL-FM's social media accounts.

I, (print name clearly)_____ have read, understand, and agree to the station and FCC policies presented in this document. I understand that violation of these rules can result in lost privileges, suspension, or dismissal from WMUL-FM. I understand that I am liable if the FCC choses to fine the station for infractions I have committed.

Signature:_____ Date:___ / ___ / _____

WHITE - Traffic YELLOW - Student Manager PINK - Staff Member's Copy